

known they were false, and had no reasonable grounds for believing them to be true when made (XC at ¶ 80); (3) that Khan intended that X-Therma rely on his representations (XC at ¶ 81); (4) that Khan's misrepresentations were a substantial factor in X-Therma's decision to enter the Lease with Khan (XC at ¶ 83); and (5) that as a direct and proximate result of the conduct and actions committed by Khan, X-Therma has been damaged in an amount exceeding \$700,000 (XC at ¶ 84).

The Cross-Complaint is bereft of allegations as to how Plaintiff knew or should have known of a mold problem on the Premises and how he concealed this from Defendant. The allegations of the Cross-Complaint are cursory at best. Plaintiff is entitled to summary adjudication on Defendant's negligent misrepresentation claim.

2. 9:00 AM CASE NUMBER: C23-03214

CASE NAME: ROBERT BRADFORD VS. KEITH STONE

***HEARING ON MOTION IN RE: LIMITED OPPOSITION TO DISCOVERY ORDER NO. 3**

FILED BY: K. B. STONE DIAMOND CORPORATION

TENTATIVE RULING:

Granted. Plaintiffs are not permitted to seek discovery into unrelated business entities and personal financial matters of the Stones, other than the flow of money between Defendants K.B. Stone Diamond Corporation and Happy Valley Estates, LLC to the Stones. The order is made without prejudice if discovery reveals cash flowing between one of the relevant entities and an unrelated business entity and/or personal finances.

3. 9:00 AM CASE NUMBER: C24-03509

CASE NAME: AJ JACKSON VS. ANTIOCH UNIFIED SCHOOL DISTRICT

HEARING ON DEMURRER TO: COMPLAINT

FILED BY: ANTIOCH UNIFIED SCHOOL DISTRICT

TENTATIVE RULING:

Defendant Antioch Unified School District's Demurrer to Plaintiff AJ Jackson's Complaint is **sustained with leave to amend**. Defendant shall prepare and submit a proposed order and serve notice of entry of the order. Plaintiff shall have 30 days from service of notice of entry of order in which to file and serve an amended complaint.

Background

Plaintiff AJ Jackson, a minor, alleges that on January 1, 2024, while attending Carmen Dragon Elementary, he was physically assaulted by other students. (Complaint, ¶ 3.) Plaintiff alleges he was under the custody, control, and care of District employees at the time and that those employees "failed [to] take appropriate action" in supervising and protecting him. (*Id.* ¶ 13.) Plaintiff seeks to hold the District vicariously liable the negligence of its employees pursuant to Government Code section 815.2. (*Id.* ¶¶ 14-18.)

Plaintiff alleges that a government claim "was served on Antioch Unified School District pursuant to Government Code section 911.2 and has not been rejected." (*Id.* ¶¶ 8-9.)

On August 13, 2025, Defendant filed the instant demurrer to complaint in which it argues that Plaintiff failed to comply with the claim presentation requirements of the Government Claims Act (GCA). Plaintiff opposes.

Demurrer Standard

In reviewing the sufficiency of a complaint against a demurrer for failure to state facts sufficient to state a cause of action, the Court “treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” (*Serrano v. Priest* (1971) 5 Cal.3d 584, 591.) A demurrer tests the pleadings alone and not extrinsic matters; therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed. (CCP §§ 430.30, 430.70.)

Leave to amend should be granted when “there is a reasonable possibility that the defect can be cured by amendment.” (*Centinela Freeman Emergency Medical Associates v. Health Net of California* (2016) 1 Cal.5th 994, 1010.)

Analysis

With certain exceptions not applicable here, “no suit for money or damages may be brought against a public entity on a cause of action for which a claim is required to be presented . . . until a written claim therefor has been presented to the public entity.” (Govt. Code §§ 905, 911.2, 945.4.)

Govt. Code § 915 provides:

(a) **A claim**, any amendment thereto, or an application to the public entity for leave to present a late claim **shall be presented to a local public entity by any of the following means:**

(1) Delivering it to the clerk, secretary or auditor thereof.

(2) **Mailing it to the clerk, secretary, auditor, or to the governing body at its principal office.**

(3) If expressly authorized by an ordinance or resolution of the public entity, submitting it electronically to the public entity in the manner specified in the ordinance or resolution. . . .

(e) **a claim**, amendment, or application **shall be deemed to have been presented in compliance with this section** even though it is not delivered or mailed as provided in this section **if, within the time prescribed for presentation thereof, any of the following apply:**

(1) **It is actually received by the clerk, secretary, auditor, or board of the local public entity.**

. . . .

(Govt. Code, § 915, emphasis added.)

A complaint against a public entity must allege compliance with the GCA or circumstances excusing compliance. (*State v. Superior Court (Bodde)* (2004) 32 Cal.4th 1234, 1245.)

Defendant demurs to the complaint on the ground that Plaintiff failed to comply with the Government Tort Claims Act. Specifically, Defendant argues Plaintiff did not comply with Government Code section 915(a)(2) because his claim was delivered to Defendant’s Business Services/Risk Management Department rather than to the District’s “clerk, secretary, auditor, or governing body,” as the statute requires.

To establish noncompliance, Defendant requests judicial notice of: (1) a “Government Tort Claim for Damage or Injury” submitted on behalf of AJ Jackson, bearing an AUSD Business Services “Received”

stamp dated July 1, 2024; (2) the accompanying certified-mail envelope addressed to “Antioch Unified School District, Attn: Risk Management,” also received July 1, 2024; and (3) a return envelope addressed to plaintiff’s counsel requesting a conformed copy. (Alterman Decl., Ex. A.)

Defendant’s request for judicial notice is granted as to Exhibit 1. (Evid. Code, § 452, subd. (d).) A governmental entity may request judicial notice that its records do not show compliance where the plaintiff alleges compliance, but the records do not reflect it. (*Gong v. City of Rosemead* (2014) 226 Cal.App.4th 363, 376.)

While the Court may take judicial notice of the existence and contents of Exhibit 1, including that the claim was addressed to and received by Risk Management, judicial notice does not establish that the claim was never forwarded to, or actually received by, a statutory recipient under section 915(a)(2). Nor does the Court take judicial notice of the truth of Ms. Alterman’s statement that the claim “has not been forwarded to or actually received by the clerk, secretary, auditor, or the District’s governing body.” Judicial notice does not extend to such factual assertions.

Plaintiff admits he did not address his claim to any of the statutorily authorized recipients. He argues, however, that he complied, or substantially complied, with the GCA because the claim was mailed to 510 G Street, Antioch, CA 94509, the District’s principal office and the location of the Board. (Plf.’s RJN, Exs. A–C.)

Defendant responds that substantial compliance fails as a matter of law because the claim was not directed to a statutorily designated recipient, citing *DiCampli-Mintz v. County of Santa Clara* (2012) 55 Cal.4th 983.

In *DiCampli-Mintz*, the California Supreme Court addressed the scope of California Government Code § 915, which “establishes the manner of delivery of a claim against the government.” (*Id.* at 986.) Section 915(a) “requires that a claim be presented to a local public entity by ‘[d]elivering it to the clerk, secretary or auditor,’ or by mailing it to one of these officials ‘or to the governing body.’” (*Id.*) Section 915(e), however, provides that “a misdirected claim ‘shall be deemed to have been presented in compliance’ with section 915 if ‘[i]t is actually received by the clerk, auditor or board of the local public entity.’” (*Id.*)

The plaintiff in *DiCampli-Mintz* was injured during a surgery performed on her at a hospital owned and operated by Santa Clara County. She retained an attorney who sent a letter to the hospital’s risk management department and the doctors who performed the surgery stating that she intended to file suit for damages. The attorney did not include in the letter a request for it to be forwarded to any of the statutorily designated recipients denoted in section 915. (See *id.* at 987.) It was also “undisputed that the letter was never personally served or presented, nor was it mailed to the county clerk or the clerk of the board.” (*Id.*)

The attorney’s letter was received by the County’s risk management department. Subsequently, an employee of the County’s risk management department called the plaintiff’s counsel:

According to plaintiff’s counsel, [the employee] acknowledged receipt of the letter; orally opined that service on [the hospital] required a tort claim which was late; questioned whether a tort claim was required as to [the doctors] and indicated that he would look into that; stated that plaintiff had an interesting case; mentioned a physical condition that put plaintiff at risk; and provided the name of the attorney handling the County’s defense. [The employee] did not mention that the letter failed to satisfy section 915’s delivery requirements. Plaintiff never received written notice that her claim was untimely or presented to the wrong party.

(*Id.* at 988.)

The County argued the plaintiff had failed to comply with the GCA because her claim was never presented to or received by a statutorily designated recipient. In response, the plaintiff argued that she had substantially complied with the GCA through her attorney's letter, which was delivered to and received by the risk management department as "the county department most directly involved with the processing and defense of tort claims against the County." (*Id.* at 989.)

On appeal, the Supreme Court rejected the plaintiff's substantial compliance argument, noting that section 915 by its "plain language" required either presentation to one of the statute's designated recipients or actual receipt of notice by a proper recipient. (*Id.* at 992.) It stated that section 915(a)(1) reflects the Legislature's intent to precisely identify those who may receive claims on behalf of a local public entity. Section 915(e)(1) reflects the Legislature's intent that a misdirected claim will satisfy the presentation requirement if the claim is "actually received" by a statutorily designated recipient. Thus, compliance with section 915(e)(1) requires actual receipt of the misdirected claim by one of the designated recipients. If an appropriate public employee or board never receives the claim, an undelivered or misdirected claim fails to comply with the statute. (*Id.* at 992-93.)

The Court also rejected the lower court's holding that section 915 could be satisfied if a claimant were to serve a party who may have had a duty to notify one of the statutorily designated recipients. "[B]y focusing on the duty of a public employee in receipt of a claim to forward the claim to the proper agency, [the appellate court] inappropriately shifts responsibility for filing a claim with the proper official or body from the claimant to the public entity." (*Id.* at 996.) The Court stated, if the lower court's ruling were followed, much uncertainty would be introduced "about how and where claims must be delivered" which would be "contrary to the [GCA's] goal of eliminating uncertainty in the claims-presentation requirements." (*Id.* at 997.)

Plaintiff argues the facts of this case are distinguishable because the letter in *DiCampli-Mintz* was delivered to a hospital sub-department, whereas his claim was mailed to the District's principal office where its Board sits, such that none of the concerns noted in *DiCampli-Mintz* are implicated. Plaintiff argues the only defect here is Defendant's asserted "preference" that the envelope containing a claim be addressed to a specific internal recipient rather than "Risk Management." Plaintiff further argues that Defendant waived any defect under Government Code section 910.8 by failing to provide notice of any deficiency.

There is no dispute that Plaintiff's claim was not sent to the District's clerk, secretary, auditor, or governing board, and the complaint does not allege actual receipt by any such official. However, at this stage, the Court need not determine whether *DiCampli-Mintz* ultimately bars Plaintiff's claim for negligence, or whether Defendant waived any defect. "Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given." (*Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227.) Here, Plaintiff claims he can plead "additional facts regarding precise address, actual receipt *and routing*..." (Opp. 11:12-13, emphasis added.) Under these circumstances, the Court finds it appropriate to grant leave for Plaintiff to allege facts demonstrating or excusing compliance with the GCA's claim-presentation requirements or otherwise supporting a defense to Defendant's assertion of noncompliance.

Accordingly, Defendant's demurrer is sustained, and Plaintiff is granted leave to amend. Defendant shall prepare and submit a proposed order and serve notice of entry of the order. Plaintiff shall have 30 days from service of the notice of entry of the order to file and serve an amended complaint.